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* **IN THE HIGH COURT OF DELHI AT NEW DELHI**

% Reserved on: 22.09.2022

Pronounced on: 13.10.2022

\+ **CRL.M.C. 2850/2022 & CRL.M.A. 11226/2022**

GURMEET SINGH BEDI ..... Petitioner

Through: Mr. Harsh Wadhwa and Mr. Imran Qureshi, Advocates.

versus

STATE (GOVT. OF NCT OF DELHI) & ANR. ..... Respondents

Through: Ms. Meenakshi Arora, APP for the State.
Mr. Sahil Bhatnagar, Advocate for R-2.

CORAM:
HON'BLE MS. JUSTICE NEELAM SAHGAL RAO

JUDGMENT

1. This petition under Section 482 of the Code of Criminal Procedure, 1973 ("CrPC") seeks quashing of FIR No. 0412/2022 registered at P.S. Mehrauli, Delhi, for offences under Sections 420, 468 and 471 of the Indian Penal Code, 1860.

2. The FIR was registered on the complaint of respondent No.2, who alleges that the petitioner executed a sale deed in respect of a farmhouse at Chhatarpur on the strength of a forged power of attorney purportedly executed by respondent No.2's late father, and received Rs.1,15,00,000/- from a third-party purchaser.

3. Learned counsel for the petitioner submits that the power of attorney is genuine and was duly registered, that the dispute is essentially civil in nature and pending in a suit for declaration, and that the FIR is an attempt to pressurise the petitioner.

4. Learned APP and learned counsel for respondent No.2 submit that the forensic opinion on the signature on the power of attorney has been received and supports the allegation, and that the investigation is at a nascent stage.

5. I have heard learned counsel for the parties. The question is the extent of the Court's power under Section 482 of the CrPC when asked to quash an FIR on the ground that the allegations are false or the dispute civil.

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6. The submissions of the petitioner on the genuineness of the power of attorney, the effect of its registration and the evidentiary value of the forensic opinion all call for an appreciation of evidence. These are matters to be examined by the investigating agency and, thereafter, by the trial court.

7. At the stage of Section 482 of the Code of Criminal Procedure, 1973 the High Court cannot conduct a mini-trial or weigh the evidence; it must take the allegations in the FIR at face value and ask only whether they disclose the commission of a cognizable offence.

8. The FIR discloses the ingredients of cheating and forgery. The pendency of a civil suit does not bar a criminal proceeding where the allegations also constitute an offence.

9. The petition is dismissed. Nothing stated herein shall be construed as an expression on the merits of the case. Pending applications stand disposed of.

NEELAM SAHGAL RAO, J

OCTOBER 13, 2022/ak

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